



POLICE DEPARTMENT

July 17, 2025

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In the Matter of the Charges and Specifications :
- against - :
Police Officer Gabriel Perez-Ponce :
Tax Registry No. 963187 :
7 Precinct :
-----X

Case No.

C-031963

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Mallika Kaushal, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
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For the Respondent:

Craig Hayes, Esq.
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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
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CITY OF NEW YORK
POLICE DEPARTMENT

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CHARGES AND SPECIFICATIONS

1. Police Officer Gabriel Perez-Ponce, on or about February 11, 2020, at approximately 1845 hours, while assigned to the 7 Precinct and on duty, § 87(2)(b) New York County, wrongfully used force, in that he restricted § 87(2)(b) breathing while rear cuffed by leaving him on his chest on the ground for several minutes, without police necessity.

P.G. 221-01, Page 3, Prohibition 2

FORCE GUIDELINES

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 5, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. On stipulation, the Civilian Complaint Review Board (CCRB) entered in evidence body-worn camera (BWC) footage and civilian video of the incident, as well as a still image of the young man who was the subject of this incident. The young man did not testify at this hearing. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty as charged.

ANALYSIS

The following facts are uncontested. On February 11, 2020, Respondent and his partner, Officer Cesar Mejia, had two separate encounters with an emotionally disturbed young man¹ (hereinafter § 87(2)(b)) who was experiencing a mental health crisis. Initially, Respondent and

¹ The young man involved in this incident did not testify at the hearing and it is not known by this Tribunal whether he made a complaint to CCRB. He did provide his name and some pedigree information on scene and the information is captured on multiple videos. His initials were used for anonymity.

Officer Mejia responded to call at a residential facility on § 87(2)(b) Street. When Respondent and Officer Mejia arrived at the facility, they were informed by a worker that § 87(2)(b) was having a mental health episode and the worker was concerned for his safety. § 87(2)(b) was not at the facility when Respondent arrived, but he was provided with a description of him. Not long after receiving this report, while Respondent was conducting a “directed patrol” § 87(2)(b), he identified § 87(2)(b) on the street. Respondent approached § 87(2)(b) to ask him if he needed help and § 87(2)(b) stated that he wanted to go to the hospital. Accordingly, Respondent called an ambulance to transport § 87(2)(b) as he requested. (Tr. 13-16)

A few hours later, while at a fixed post near § 87(2)(b) in Manhattan, Respondent and Officer Mejia were approached by an unidentified female, who reported that a “shirtless man” (later identified as § 87(2)(b)) was down the street swinging either a stick or a pipe. The woman expressed concern for the safety of the bystanders in his immediate vicinity. Respondent proceeded to investigate this complaint. Respondent and Officer Mejia approached § 87(2)(b) but he ran away from them. Once they got closer to § 87(2)(b) the officers were able to grab him, take him down to the ground and handcuff him. (Tr. 17-18)

Respondent and Officer Mejia detained § 87(2)(b) by rear handcuffing him while he was lying on the ground, face down. They continued to hold § 87(2)(b) down on the ground with their hands and knees while they called for an ambulance and backup. § 87(2)(b) remained on the ground in a prone position for over seven (7) minutes until Lieutenant Cuevas arrived on the scene and instructed the officers to sit him up. For the duration of time that Respondent and his partner held § 87(2)(b) on the ground, he was crying, yelling and cursing. § 87(2)(b) repeated multiple times that he had a bad heart, that he had asthma and that he could not breathe.

Respondent is charged with violating the Department's force guidelines by using a prohibited method of restraint. The question for this Tribunal is whether Respondent's action of kneeling on the back of a rear-cuffed individual, in the prone position on the ground, constitutes a wrongful use of force. The preponderance of the credible evidence in this case supports the contention that this was an impermissible method of restraint which constitutes wrongful use of force, and therefore Respondent is Guilty as charged.

CCRB did not call any witnesses at this hearing. Instead, they offered five videos in evidence— three civilian cell phone videos (CCRB Exs. 1-3) and two body worn camera videos (CCRB Exs. 4 & 5). Each of the videos captured the incident from similar vantage points and provided helpful insight to this Tribunal. CCRB's Exhibit 1 (00:25-01:00) shows § 87(2)(b) lying on the ground face down while his hands are being cuffed behind his back. Respondent and Officer Mejia are on either side of him on the ground. § 87(2)(b) is audibly upset, in that he is crying and grunting at various points during the encounter, but remains still on the ground while in the officers' custody. Respondent and Officer Mejia's hands and knees are on § 87(2)(b) back keeping him pinned to the ground. Although § 87(2)(b) is making verbal complaints, he does not appear to be resisting or attempting to flee. At about the one minute mark, § 87(2)(b) can be heard saying in sum and substance: "I got a bad heart, I got asthma! He's kneeling me in my chest," and "I can't breathe."

CCRB's Exhibit 2 is a 33 second video that captures a closer view of Respondent and Officer Mejia's interaction with § 87(2)(b). This video begins at the point when § 87(2)(b) is already in the prone position, rear-cuffed on the ground and complaining about his inability to breathe. Respondent and Officer Mejia are kneeling on each side of him. For the entire duration of this

video, Respondent's knee can be seen on § 87(2)(b) back/shoulder blade while Officer Mejia's knee is also pressed against § 87(2)(b) mid to lower back.

CCRB's Exhibit 3 captures the point at which two additional officers are on scene. The two new officers on scene are standing in close proximity to § 87(2)(b) seemingly creating a barrier between him and the civilian bystanders observing the incident. For the duration of this video, § 87(2)(b) is still being held face down on the ground by Officer Mejia. At this point, Respondent is also standing near § 87(2)(b) and seems to be communicating information on his radio.

CCRB's Exhibits 4 and 5, respectively, are Respondent and Officer Mejia's body-worn camera footage. Both videos are approximately 15 minutes in length and capture the incident from the initial foot pursuit until § 87(2)(b) is placed in an ambulance for transport to the hospital. There are, however, subtle, but important distinctions depicted in each video which are summarized below.

CCRB Exhibit 4 (Respondent's BWC)

00:33–00:53	The video is momentarily obscured while § 87(2)(b) is heard whimpering and grunting, as a voice says, "Give me your hands." When the video comes into focus, § 87(2)(b) is face down on the ground with his arms behind his back as he is placed in handcuffs.
00:54–1:33	While still face down, § 87(2)(b) asks, "What is this for?" and repeatedly urges bystanders to "please record this." While holding § 87(2)(b) down, Officer Mejia instructs the onlookers who have moved closer to "stand back."
1:33–3:25	Both Officers remain positioned on § 87(2)(b) back as he continues to cry out, rant, and grunt repeatedly. (See Officer Mejia's BWC Summary below.)
3:26–4:40	Respondent stands up and instructs two bystanders recording the scene to "back up." Officer Mejia remains atop § 87(2)(b) who, though loud and verbally expressive, does not attempt to flee. Two additional officers arrive and direct the crowd to "cross the street," but neither engages with § 87(2)(b).

- 4:51–5:46 Officer Mejia then stands and says, “Let me go get my phone really quick,” before walking away. Respondent remains beside § 87(2)(b) who is still lying face down. Officer Mejia is off camera for approximately one and a half minutes.
- 7:00–7:40 § 87(2)(b) yells obscenities and Respondent, who is now standing beside him, instructs § 87(2)(b) to “Stay down.”
- 7:45–8:00 A Lieutenant arrives on the scene, points to § 87(2)(b) and immediately instructs the officers to, “Sit this guy up.” Both officers lift § 87(2)(b) to his feet and then instruct him to sit down. Respondent directs § 87(2)(b) to sit up.

CCRB Exhibit 5 (Officer Mejia’s BWC)

- 1:04–1:48 § 87(2)(b) can be heard crying as he asks, “What is this for?” He then seems to say to bystanders gathering near him: “Please record this. Please stay by my side. Please don’t leave me!” § 87(2)(b) asks the officers, “What am I under arrest for?” He then continues to plead for bystanders to “please record” and “please don’t go away. I don’t feel safe.” Officer Mejia tells the bystanders to back up and they comply.
- 1:49–2:06 § 87(2)(b) states three times, “I got a bad heart.” He then informs the officers that he has asthma and states: “He’s kneeling me in my chest!” § 87(2)(b) then repeats four times “I can’t breathe.” The officers do not move from their kneeling position or reposition § 87(2)(b).
- 2:07–2:29 § 87(2)(b) twice asks why he is under arrest. When Respondent replies, “You’re not being arrested. We’re taking you to the hospital;” § 87(2)(b) explains that police had already brought him to the hospital earlier that day.
- 2:30–3:04 § 87(2)(b) then states, “You’re going to lose your badge. You just assaulted me on top of this!” An individual approaches them; Officer Mejia rises from a kneeling position and orders the individual to step back. The individual complies.
- 3:05–5:40 § 87(2)(b) continues to make verbal complaints and ask the officers questions. He also continues to plead with the bystanders not to leave his side.
- 5:41–8:00 Officer Mejia rises to his feet and tells Respondent he is going to get his phone. He then walks away from Respondent, leaving him with § 87(2)(b) who remains in custody, face down on the ground.

- Officer Mejia retrieves his phone from his RMP and returns to § 87(2)(b) who is still in the prone position.
- 8:01-8:10 A lieutenant arrives on scene and immediately orders Officer Mejia and Respondent to “sit this guy up.” They lift § 87(2)(b) on to his feet.
- 8:20-08:33 Officers tell § 87(2)(b) to sit down. § 87(2)(b) replies, “Can you stop trying to trip me? What’s the difference, if y’all had me on the floor? I was fine right there.” Lieutenant replies, “I don’t want you face down because then you can choke or something.”

Respondent’s account of the events that transpired on the date of the incident are substantially the same as those captured on videos with only a few notable differences. Respondent testified that after § 87(2)(b) was taken down to the ground and handcuffed, he did not immediately sit him up because he was being “very erratic” and he was a “flight risk.” (Tr. 19) Respondent further avowed that despite § 87(2)(b) repeated complaints, as captured on body-worn camera, he never showed “signs of any distress.” (Tr. 20)

Respondent asserted that he kept his hand on § 87(2)(b) back to make sure he did not move. He also claimed that he was not kneeling on § 87(2)(b) back, but that his knee was “touching” § 87(2)(b) right shoulder. Respondent testified that he heard § 87(2)(b) state that he had a bad heart, asthma and that he could not breathe. Respondent further acknowledged that despite hearing those statements, he did not reposition § 87(2)(b). He further admitted that § 87(2)(b) remained handcuffed, in a prone position on the ground until Lieutenant Cuevas arrived on scene and instructed Respondent to sit him up. (Tr. 22, 26-30)

The Department’s force guidelines that were in effect at the time of this incident expressly prohibit “[the] use of any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape or to overcome active physical resistance or assault.” (P.G. 221-01) Additionally, Patrol Guide section 221-02, which provides guidelines for

members of service regarding the use of force, specifically directs that officers are to “apply no more than the reasonable force necessary to gain control” and “avoid actions which *may* result in chest compression, such as sitting, kneeling, or standing on a subject’s chest or back, thereby reducing the subject’s ability to breathe.” Finally, P.G. 221-02 advises officers to “position the subject to promote free breathing, as soon as safety permits, by sitting the person up or turning the person onto his /her side.”

This Tribunal finds that CCRB has met their burden of proof by a preponderance of the credible, relevant evidence that Respondent violated the Patrol Guide in using a prohibited method of restraint on § 87(2)(b). A careful review of the videos in evidence establishes that after Respondent and his partner rear-cuffed § 87(2)(b) both officers’ knees and hands were pressed against his back, while he was face down on the ground for over one minute. (CCRB Ex. 1 and CCRB Ex. 2) During that time, § 87(2)(b) was audibly distressed and could be heard saying that he could not breathe because the officer was kneeling on his chest. Respondent admitted that his knee was on § 87(2)(b) shoulder to prevent him from moving. (Tr. 26-27) Respondent testified that despite hearing § 87(2)(b) state that he had asthma and could not breathe, he did not remove his knee from § 87(2)(b) shoulder. It is also worth noting that Respondent’s claim that he was kneeling on § 87(2)(b) shoulder rather than his back is a distinction without a difference in this Tribunal’s opinion. The shoulder blade, where Respondent appears to have had his knee, is an extension of the back and kneeling on a person’s shoulder blade or back are both actions which *may* result in reducing the subject’s ability to breathe and expressly prohibited by the Patrol Guide.

Contrary to Respondent’s counsel’s assertion, CCRB is not required to prove that § 87(2)(b) breathing was, in fact, restricted, but rather that Respondent’s actions “reduced the subject’s *ability* to breathe” as proscribed by the Patrol Guide. Based upon § 87(2)(b) statements as depicted

on the video footage, it is reasonable to conclude that Respondent's actions of kneeling on § 87(2)(b) back while he was rear cuffed, in a prone position for several minutes, could hinder or reduce his ability to breathe.

Not only did Respondent use a prohibited method of restraint on § 87(2)(b) as described above, he also kept § 87(2)(b) in a prone position for over seven minutes rather than repositioning him to promote free breathing, as soon as safety permitted it. Based upon this Tribunal's assessment of the videos in evidence, once § 87(2)(b) was handcuffed, it did not appear that he was resisting arrest or attempting to flee. Shortly after handcuffing him, the officers had gained control of § 87(2)(b) and seemingly contained the situation as evidenced by the fact that Officer Mejia walked away to get his phone and Respondent walked away to engage with bystanders that were watching and recording the incident. Even after two additional officers arrived to assist, neither Respondent nor Officer Mejia attempted to reposition § 87(2)(b). In fact, it was not until Lieutenant Cuevas arrived (seven minutes later) and directed the officers to sit § 87(2)(b) that he was repositioned. (CCRB Ex. 5 at 8:01-8:10) When § 87(2)(b) protested the officers' attempts to move him, Lieutenant Cuevas informed § 87(2)(b) that the reason he did not want him face down was because he "[could] choke or something." (CCRB Ex. 5 at 8:20-08:33) Lieutenant Cuevas' statement is further corroborative evidence that keeping a detainee in a prone position for longer than necessary is prohibited by the Department because of its harmful consequences, including the reduction of a detainee's breathing.

Respondent's conduct, on the date in the question, violates the provisions of the Patrol Guide. Accordingly, I find Respondent guilty of the sole specification charged.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Discipline Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 4, 2017, has been found guilty as charged. CCRB recommends that Respondent forfeit thirty (30) vacation days. Pursuant to the Discipline Matrix, the presumptive penalty for the application of a prohibited method of restraint resulting in no injury is 30 penalty days. (Matrix at p. 23) There were no aggravating or mitigating factors presented to this Tribunal, or in Respondent's employment history, that support a departure from the presumptive penalty.

In this case, Respondent's use of force, specifically the method and duration of the restraint used on § 87(2)(b) was not justified under the circumstances. Respondent was aware that § 87(2)(b) was suffering from a mental health crisis before he interacted with him the second time. Respondent should have tailored his reaction to § 87(2)(b) to avoid unnecessarily escalating the encounter. Respondent's actions on the date in question posed a significant risk to § 87(2)(b) well-being and could have resulted in more dire consequences. The Patrol Guide provides a detailed roadmap for members of service to follow to ensure their safety and that of civilians. All members of service are responsible and accountable for the proper use of force. Violations of the use of force policy are justifiably subject to maximum scrutiny given the grave impact that excessive force has on the public's trust and confidence in the Department and its officers.

Therefore, after taking into account the totality of the circumstances, the penalty recommended by CCRB is fair and proportionate in this case.

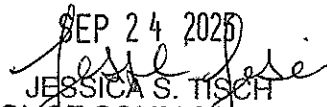
Accordingly, I recommend that the penalty be the forfeiture of thirty (30) vacation days.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

SEP 24 2025

JESSICA S. TISCH
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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MOHAMMAD KHALID
INTERIM CHAIR

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038

July 8, 2025

Re: PO Gabriel Perez-Ponce
Disciplinary Case No. 2022-24986

Commissioner Tisch:

The above-referenced case was tried on June 5, 2025, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Police Gabriel Perezponce, was charged with the following:

1. Police Officer Gabriel PEREZ-PONCE, on or about February 11, 2020, at approximately 1845 hours, while assigned to the 7 Precinct and on duty, in front of [REDACTED] New York County, wrongfully used force, in that he restricted Paul Castro’s breathing while rear cuffed by leaving him on his chest on the ground for several minutes, without police necessity.
221-01, Page 3, Prohibition 2 FORCE GUIDELINES

CCRB has reviewed the July 2, 2025, draft decision of Assistant Deputy Commissioner-Trials Vanessa Facio-Lince (hereinafter, “ADCT”). We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925(2d Dept. 1975).

The Tribunal found Respondent Perez-Ponce guilty of Specification One (1). The Tribunal recommended a penalty of the forfeiture of thirty (30) vacation days, as was recommended by the CCRB. It is respectfully requested that you accept ADCT Facio-Lince’s findings for Specification 1 as well as the Court’s recommended penalty of thirty (30) vacation days.

RELEVANT EVIDENCE AT TRIAL

EXHIBITS

CCRB Exhibits

1. Cell phone video, IMG_7010
2. Cell phone video, IMG_8418
3. Cell phone video, IMG_7011
4. PO Gabriel Perez-Ponce Body-Worn Camera Footage, 2020-02-11_18-46-50.avi
5. PO Cesar Mejia Body-Worn Camera Footage, 2020-02-11_18-46-40.avi
6. Photo of § 87(2)(b) rear hand-cuffed and lying on the ground

Respondent Exhibits

None

WITNESSES

CCRB Witnesses

None

Respondent Witnesses

1. PO Gabriel Perez-Ponce

STATEMENT OF FACT

The CCRB adopts the summary of the evidence and testimony articulated in ADCT Facio-Lince's Draft Decision. (Tribunal Decision P. 2-7).

ARGUMENT

We agree with the Tribunal's finding that CCRB met the burden of proof by a preponderance of the relevant, credible evidence that Officer Perez-Ponce violated the Patrol Guide by applying a prohibited method of restraint on § 87(2)(b) (Tribunal Decision P. 8).

I. Officer Perez-Ponce is Guilty of Specification One because he violated NYPD Departmental Policy

As the reflected in the findings of the Tribunal, the CCRB proved by a preponderance of the evidence that Officer Perez-Ponce violated Patrol Guide 221-01 (Pg. 3, Para 2).

Patrol Guide 221-01 states, in pertinent part, that it is strictly prohibited to:

“Use any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape or to overcome active physical resistance or assault.”

Pg. 3, Para 2.

Patrol Guide 221-02 further elucidates the procedure for compliance with force guidelines. Firstly, it incorporates Patrol Guide 221-01 in its guidance: “When a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01, "Force Guidelines". Pg. 1, Para 3. It also offers the following instructions to officers in regards to use of force: “apply no more than the reasonable force necessary to gain control”, “avoid actions which may result in chest compression, such as sitting,

kneeling, or standing on a subject's chest or back, thereby reducing the subject's ability to breath," and "position the subject to promote free breathing, as soon as safety permits, by sitting the person up or turning the person onto his/her side." (Pg. 2-3, Paras 11 & 14).

The Tribunal found based on its review of the evidence submitted by the CCRB that Officer Perez-Ponce and his partner rear-cuffed § 87(2)(b) while he was face down on the ground and that both officers' knees and hands were pressed against § 87(2)(b) back while he remained as such for over one minute. (Tribunal Decision P. 8; *See* CCRB Ex. 1 and CCRB Ex. 2). ADCT Facio-Lince concludes that, "[d]uring that time, P.C. was audibly distressed and could be heard saying that he could not breathe because the officer was kneeling on his chest." (Tribunal Decision P. 8).

The Tribunal further found that, in his testimony, Officer Perez-Ponce admitted that his knee was on § 87(2)(b) shoulder to prevent him from moving. (Tribunal Decision P. 8; *See* Tr. 26-27). Respondent testified that despite hearing § 87(2)(b) state that he had asthma and could not breathe, he did not remove his knee from § 87(2)(b) shoulder. *Id.*

In the Tribunal's analysis, ADCT Facio-Lince writes, "Respondent's claim that he was kneeling on P.C.'s shoulder rather than his back is a distinction without a difference ... The shoulder blade, where Respondent appears to have had his knee, is an extension of the back and kneeling on a person's shoulder blade or back are both actions which *may* result in reducing the subject's ability to breathe and expressly prohibited by the Patrol Guide." (Tribunal Decision P. 8).

ADCT Facio-Lince concludes, "Respondent's actions of kneeling on P.C.'s back while he was rear cuffed, in a prone position for several minutes, could hinder or reduce his ability to breathe." (Tribunal Decision P. 8-9).

The Tribunal also found that Officer Perez-Ponce further violated departmental policy when he kept § 87(2)(b) in a prone position for over seven minutes rather than repositioning him to promote free breathing as soon as safety permitted. (Tribunal Decision P. 9). The Tribunal specifically found that once § 87(2)(b) was handcuffed, he did not appear to be resisting arrest or attempting to flee, that the situation appeared to be contained (evidenced by Officer Mejia walking away from the scene to retrieve his phone and Officer Perez-Ponce engaging with bystanders), and that even after two additional officers arrived to assist, no one attempted to reposition § 87(2)(b). *Id.* It was only upon the arrival of Lieutenant Cuevas seven minutes later and his explicit orders to the officers to sit up § 87(2)(b) that he was repositioned. (Tribunal Decision P. 9; *See* CCRB Ex. 5 at 8:01-8:10). Lieutenant Cuevas informed P.C. that the reason he did not want him face down was because he "could choke or something." (Tribunal Decision P. 9; *See* CCRB Ex. 5 at 8:20-08:33).

As concluded by ADCT Facio-Lince in the decision, "Lieutenant Cuevas' statement is further corroborative evidence that keeping a detainee in a prone position for longer than necessary is prohibited by the Department because of its harmful consequences, including the reduction of a detainee's breathing." (Tribunal Decision P. 9)

As such, the Tribunal found the Respondent guilty of the sole specification charged.

CONCLUSION

For the above stated reasons, the evidence at trial proves by a preponderance that the CCRB established a violation of Patrol Guide Section 221-08. CCRB respectfully requested that you accept ADCT Facio-Lince's findings and recommendation of the forfeiture of Thirty (30) vacation days.

Respectfully submitted,

Mallika Kaushal

MALLIKA KAUSHAL

APU PROSECUTOR

NYC CIVILIAN COMPLAINT REVIEW BOARD

ADMINISTRATIVE PROSECUTION UNIT

Cc: Craig Hayes, Esq.